

of the meeting for the purpose must be given, and no persons must take part in the proceedings who are not entitled to attend (*e*).

18. **Minister of a meeting-house.** — A minister in possession of a meeting-house is tenant at will to the trustees, and his estate is determinable by demand of possession without any previous notice (*f*). But this merely tries the *legal* right without affecting the question whether in *equity* the minister was properly deprived (*g*), and if the minister be in possession, and preaching the doctrines that were intended by the founders, it is the practice of a Court of Equity to continue him until the case can be heard, whether he was duly elected or not (for the first point is to have the service performed), and the Court will pay him his salary (*h*). If a minister be removable by the decision of the congregation regularly convened at a meeting, * the charges [*535] intended to be brought against the minister must be specified in the notice calling the meeting, and the minister himself must be apprised of the nature of the charges (*a*).

19. **Minister may be removable at pleasure.** — It is the policy of the Established Church by giving the minister an estate for life in his office to render him in some degree independent of the congregation; but if it be the usage amongst any particular class of dissenters to appoint their ministers for limited periods, or to make them removable at pleasure, though a Court of Equity might not struggle hard in support of such a plan, there is no principle upon which the Court would not be bound to give it effect (*b*). And, accordingly, where a decided majority of the congregation passed a reso-

(*e*) *Perry v. Shipway*, 4 De G. & J. 353, see 360.

(*f*) *Doe v. Jones*, 10 B. & C. 718; *Doe v. M'Kaeg*, 10 B. & C. 721; *Perry v. Shipway*, 1 Giff. 10; and see *Brown v. Dawson*, 12 Ad. & Ell. 624. See *post*, p. 537.

(*g*) See *Doe v. Jones*, 10 B. & C. 721.

(*h*) *Foley v. Wontner*, 2 J. & W. 247, *per* Lord Eldon. By 32 & 33

Vict. c. 110, s. 15, the powers of the Charity Commissioners, as to the appointment and removal of trustees, are extended to "buildings registered as places of meeting for religious worship."

(*a*) *Dean v. Bennett*, 6 L. R. Ch. App. 489.

(*b*) *Attorney-General v. Pearson*, 3 Mer. 402, 403, *per* Lord Eldon.